

RLS RAINS LUCIA STERN ST. PHALLE & SILVER, PC

Michael L. Rains
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March 1, 2021

VIA EMAIL [EREISKIN@OAKLANDCA.GOV] & U.S. MAIL

Ed Reiskin, City Administrator
City of Oakland
1 Frank H. Ogawa Plaza, 3rd Floor
Oakland, CA 94612

Re: Negrete *et al.* Step 3 Grievance Decision

Dear Mr. Reiskin:

Thank you for your letter dated February 25, 2021 related to the Step 3 decision issued by the City's outside employee relations officer (Jeffrey Sloan) reinstating our clients. I am aware that the City is now in possession of signed decisions by Mr. Sloan (indicating they are his final decision after his three month, pain-staking review and consideration of approximately 50,000 pages of documents). One decision relates only to Sergeant Negrete, and the other decision relates to Officers Berger, Hraiz, Tanaka and Phillips.

Accordingly, demand is made that we be provided these decisions forthwith so we can begin proceedings to enforce their binding effect on the City. By separate letter, we will respond to the City's erroneous assertion that our clients now have "the right to advance" their grievances to arbitration.

To be clear, this office is entitled to receive Mr. Sloan's decisions because they represent the City's resolution of these grievances through its designated Employee Relations Officer. This is irrespective of their status as public records. While we have no doubt that the public version of these determinations may include non-public information which needs redaction, there is no reason to redact any portion of these determinations for delivery to us. Accordingly, there is no reason for further delay.

Ed Reiskin

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We expect to receive Mr. Sloan's decisions forthwith.

Very truly yours,

RAINS LUCIA STERN

ST. PHALLE & SILVER, PC

A handwritten signature in blue ink, reading "Michael L. Rains", is written over the printed name and firm name.

Michael L. Rains

Cc: Barry Donelan, President of Oakland POA
Ian Appleyard, Director of Human Resources Management
Rocky Lucia, Esq.
Harry Stern, Esq.
Zach Lopes, Esq.